

HOUSE No. 4556

Substituted by the House, on motion of Mr. Walsh of Peabody, for a bill with the same title
(House, No. 2270) [Local Approval Received]. September 25, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Avon to appoint a town clerk.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Article III of the charter of the town of Avon, which is on file in the office
2 of the archivist of the commonwealth, as provided in section 12 of chapter 43B of the General
3 Laws, is hereby amended by striking out section 3-4.

4 SECTION 2. Article IV of said charter is hereby amended by adding the following
5 section:-

6 Section 4-32. TOWN CLERK

7 (a) Appointment, Term of Office - There shall be a town clerk, appointed by the select
8 board, to serve for a term of 3 years.

9 (b) Powers and Duties - The town clerk shall: (i) be the keeper of vital statistics for the
10 town; (ii) be the custodian of the town seal and of all other records of the town; (iii) administer
11 the oath of office to all town officers who are required to be sworn to their office; (iv) be the
12 clerk of the town meeting; (v) issue all such licenses and permits as are provided by law; and (vi)

13 be responsible for the conduct of all elections held in the town and of all other matters relating to
14 elections. The town clerk shall have all of the other powers, duties and responsibilities that are
15 given to town clerks by the General Laws.

16 SECTION 3. As of the effective date of this act, the elected incumbent town clerk shall
17 continue to serve in such elected position for the term for which they were elected. The town
18 clerk shall, during this period, be subject to the call of the appointing authority for the position as
19 set forth in the town of Avon town charter. Upon the expiration of such elected term, the elected
20 office shall be abolished; provided, however, that the elected incumbent holding office as of the
21 effective date of this act shall become the first appointed clerk under this act. If the elected
22 incumbent removes from office prior to the expiration of the elected term, the elected position
23 shall thereupon be abolished and such office filled in accordance with appointing procedures as
24 set forth in the town of Avon town charter.

25 SECTION 4. This act shall take effect upon its passage.